

STATE OF NEW YORK

10555--A

IN SENATE

May 21, 2026

Introduced by Sen. MARTINS -- read twice and ordered printed, and when printed to be committed to the Committee on Local Government -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT authorizing the village of Upper Brookville, county of Nassau, to alienate and discontinue the use of certain parklands

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subject to the provisions of this act, the village of Upper
2 Brookville, county of Nassau is hereby authorized, acting by and through
3 its governing body, and upon such terms and conditions as determined by
4 such governing body, to discontinue the use as parkland and alienate the
5 lands described in section three of this act, and to sell and convey
6 property interests in such lands at fair market value for the purpose
7 of providing land to construct a residence.

8 § 2. The authorization provided for in section one of this act shall
9 be effective only upon the condition that the village of Upper Brook-
10 ville dedicates the lands described in section three of this act as
11 parkland, provided that such lands have never been used for public open
12 space or municipal park purposes.

13 § 3. The parklands authorized by section one of this act to be discon-
14 tinued as parkland is described as follows:

15 All that certain plot, piece or parcel of land, with the buildings and
16 improvements erected, situate, lying and being in the Incorporated
17 Village of Upper Brookville, Town of Oyster Bay, County of Nassau, and
18 State of New York, more particularly described as follows:

19 (1) COMMENCING AT A POINT, SAID POINT BEING LOCATED AT THE NORTHWEST
20 TERMINUS OF A LINE JOINING THE SOUTHERLY LINE OF CHICKEN VALLEY ROAD
21 WITH THE WESTERLY LINE OF WOLVER HOLLOW ROAD; RUNNING THENCE

22 (2) SOUTH 61 DEGREES 55 MINUTES 11 SECONDS EAST, ALONG THE LINE

23 (3) JOINING THE SOUTHERLY LINE OF CHICKEN VALLEY ROAD WITH THE WESTER-
24 LY LINE OF WOLVER HOLLOW ROAD, 50.00 FEET; THENCE

25 (4) SOUTH 1 3 DEGREES 36 MINUTES 0 1 SECONDS WEST 177 .66 FEET; THENCE

26 (5) SOUTH 72 DEGREES 41 MINUTES 40 SECONDS WEST 39.93 FEET; THENCE

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (6) NORTH 15 DEGREES 08 MINUTES 23 SECONDS WEST 177 .23 FEET, TO THE
2 SOUTHERLY LINE OF CHICKEN VALLEY ROAD; THENCE

3 (7) NORTH 65 DEGREES 43 MINUTES 33 SECONDS EAST, ALONG THE SOUTHERLY
4 LINE OF CHICKEN VALLEY ROAD, 90.04 FEET, TO THE POINT OF BEGINNING,
5 CONTAINING WITHIN SAID BOUNDS 0.366 ACRES, MORE OR LESS.

6 § 4. In the event that the fair market value of the parklands
7 described in section three of this act to be dedicated by the village of
8 Upper Brookville pursuant to this act are not equal to or greater than
9 the fair market value of the parklands to be discontinued as described
10 in section three of this act, the village of Upper Brookville shall
11 dedicate the difference of the fair market value of the lands to be
12 discontinued and the lands to be dedicated for the acquisition of addi-
13 tional parklands and/or capital improvements to existing park and recre-
14 ational facilities.

15 § 5. In the event that the village of Upper Brookville received any
16 funding support or assistance from the federal government for the
17 purchase, maintenance or improvement of the parklands set forth in
18 section three of this act, the discontinuance and alienation of such
19 parkland authorized by the provisions of this act shall not occur until
20 the village of Upper Brookville has complied with any federal require-
21 ments pertaining to the alienation or conversion of parklands, including
22 satisfying the secretary of the interior that the alienation or conver-
23 sion complies with all conditions which the secretary of the interior
24 deems necessary to assure the substitution of other lands shall be
25 equivalent in fair market value and usefulness to the lands being alien-
26 ated or converted.

27 § 6. This act shall take effect immediately.